

Act Relating to Rights of Persons with Disabilities, 2017

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Act Relating to the Rights of Persons with Disabilities, 2074 (2017)

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Amending Acts

1. The Act Relating to the Rights of Persons with Disabilities (First Amendment), 2075 (2018) 2075.6.2 (September 18, 2018)
2. The Act Relating to Amend Some Nepal Acts Relating to the Civil Code, 2075 (2018) 2076.1.2 (April 14, 2019)

Act Number 25 of the Year 2074 (2017)

An Act Made to Amend and Consolidate Laws Relating to the Rights of Persons with Disabilities

Preamble: Whereas, it is expedient to amend and consolidate laws relating to the rights of persons with disabilities in respect of ending discrimination against persons with disabilities, respecting their civil, political, economic, social and cultural rights, empowering persons with disabilities, ensuring their participation in policy-making and development processes, and ensuring an environment for a self-reliant and dignified life;

Now, therefore, the Legislature-Parliament has enacted this Act pursuant to Sub-section (1) of Article 296 of the Constitution of Nepal. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Act Relating to the Rights of Persons with Disabilities, 2074 (2017)."

(2) This Act shall commence on the ninety-first day after the date of its authentication. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Helpless person with disability" means a person with disability who has no property of his/her own, has no family member or guardian to provide care and support, or is unable to earn a livelihood through self-employment. (b) "Person with disability" means a person who has a long-term physical, mental, intellectual or sensory impairment, functional limitation or existing barrier which hinders his/her full and effective participation in social life on an equal basis with others. (c) Omitted by the First Amendment (d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. (e) "Directive Committee" means the National Directive Committee on Disability constituted pursuant to Section 38. (f) "Family" means the grandfather, grandmother, father, mother, son, daughter, elder brother, younger brother, elder sister, younger sister or husband or wife of a person with disability, and said term also includes other relatives of his/hers living together in a joint family. (g) "Accessible" means the condition where man-made physical structures, means of transportation, information and communication devices and technology, or services and facilities made available to the general public can be used equally without barrier, enabling persons with disabilities to live

independently and participate fully in all aspects of life. (h) "Rehabilitation Centre" means the Rehabilitation Centre pursuant to Section 29. (i) Inserted by the First Amendment. "Enterprise" means any factory, association, organization, institution, company, firm or other entity which is established, incorporated, registered, formed or operated according to prevailing law for the purpose of doing industry, business or service, whether for profit or not for profit. (j) "Language" means spoken or sign language and other types of non-verbal languages. (k) Amended by the First Amendment. "Ministry" means the Ministry of Women, Children and Senior Citizens of the Government of Nepal. (l) "Communication" means language, display of text, Braille, tactile communication, large print, accessible multimedia, accessible information and communication technology, including written, audio, plain language, human reader and augmentative and alternative modes, means and formats of communication. (m) "Coordination Committee" means the Local Coordination Committee constituted pursuant to Section 42. (n) "Local Level" means a Rural Municipality or Municipality. (o) "Guardian" means a person appointed according to prevailing law to protect the rights and interests of a person with disability. (p) "Protection Officer" means the Officer pursuant to Section 58. Chapter-2 Classification of Disability, Identity Card and Record 3.

Classification of Disability: (1) The classification of disability shall be as specified in the Schedule. (2) The Ministry may, on the recommendation of a committee as prescribed, revise the classification of disability as per Sub-section (1). 4. Provision Relating to Identity Card for Disability: (1) For a person with disability to obtain an identity card for disability, the person himself/herself, or any member of his/her family or guardian shall submit an application to Amended by the First Amendment. the relevant Local Level, along with the recommendation of Amended by the First Amendment. the concerned Ward Office. (2) Notwithstanding anything contained in Sub-section (1), if a person with disability cannot submit an application himself/herself, or if there is no family member or guardian of such person, the Ward Chairperson of the concerned Ward of the Local Level may submit an application on behalf of such person for the identity card for disability as per Sub-section (1). (3) Upon receipt of the application pursuant to Sub-section (1) or (2), the Local Level shall conduct necessary investigation into the application. While conducting such investigation, in the case of a person whose disability is clearly visible, the Local Level shall issue an identity card for disability in the format as prescribed, also specifying the classification of disability. (4) While investigating the application pursuant to Sub-section (3), in the case of a person whose classification of disability is not clear or there is doubt about whether or not he/she has a disability, the Local Level shall submit the matter to the Coordination Committee. Upon the recommendation of that Committee, the Local Level shall issue the identity card for disability as per Sub-section (3). (5) If the Coordination Committee finds it necessary to conduct a physical examination of the person seeking the identity card for disability before making a recommendation pursuant to Sub-section (4), it shall cause a health examination of such person to be conducted at a nearby government hospital at the expense of the Local Level. (6) If it is not found appropriate to issue an identity card for disability to any person upon investigation or physical examination as per this Section, the Local Level shall inform the applicant of the reasons thereof. (7) A person aggrieved by the decision of the Local Level not to issue an identity card for disability pursuant to Sub-section (6) may file a complaint before the Ministry or an officer designated by the Ministry within thirty-five days. The decision of the Ministry on such complaint shall be final. (8) Other provisions relating to the issuance of identity cards to persons with disabilities shall be as prescribed. 5.

Not to Obtain Identity Card by Providing False Information: (1) No person shall obtain an identity card for disability by providing false information, or obtain an identity card for a different classification of disability by providing false information in a matter falling under one classification of disability. (2) If any person obtains an identity card for disability contrary to Sub-section (1), the identity card of such person shall be cancelled and

he/she shall be subject to action under this Act. (3) Amended by the First Amendment. Notwithstanding anything contained in Sub-section (2), if it is found that an officer has provided an identity card of a different classification to a person with disability, despite the person providing true information, the officer who issued such identity card shall be recommended for action according to prevailing law. (4) If any person is found to have been appointed to a position reserved for persons with disabilities under prevailing law based on an identity card for disability obtained by providing false information, then, notwithstanding anything contained in prevailing law, such appointment shall be voided at any time, and the salary and other facilities received by him/her shall be recovered as government dues, and he/she shall be deemed to have committed the offense of falsifying qualifications for obtaining the position and shall be punished according to prevailing law. Amended by the First Amendment.

6. Record Keeping Required: (1) The Local Level shall prepare a record including details as prescribed of persons with disabilities permanently residing within its area and shall update it annually. (2) The Local Level shall send the record updated pursuant to Sub-section (1) to the Ministry of Federal Affairs and General Administration, the Ministry, and the ministry looking after the social sector of the Province. (3) The Ministry shall prepare an integrated detail of persons with disabilities based on the records received pursuant to Sub-section (2). (4) Persons with disabilities not included in the record under this Section shall not be entitled to claim services and facilities provided under this Act.

Chapter-3 Rights of Persons with Disabilities

7. Right to Enjoy Rights According to Prevailing Law: In addition to the rights conferred by this Act, persons with disabilities shall have the right to enjoy rights conferred by prevailing law on an equal basis with other persons.

8. Right Against Discrimination: (1) A person with disability shall not be discriminated against on the basis of disability or deprived of personal liberty.

Explanation: For the purpose of this Section, "discrimination on the basis of disability" means any act that creates obstacles or barriers or differentiates, excludes or restricts a person from the enjoyment or exercise of human rights and fundamental freedoms in the political, economic, social or cultural fields on an equal basis with other persons, or on the basis of disability, and this term also includes discrimination by denial of reasonable accommodation. (2) No person shall discriminate in any way on the basis of disability against a person with disability while enrolling him/her in an educational institution, while taking loans with or without collateral from banks and financial institutions or conducting other financial transactions, while selecting for any employment, or while providing any services or facilities made available to the public for a fee or free of charge. (3) No family member or guardian of a person with disability shall discriminate in any way against such person on the basis of disability in matters of upbringing, food and drink, care, property distribution or other matters. (4) No person shall prohibit or impose additional conditions or obligations on any person for the use of or entry into any building or place which is open for use or entry by the general public upon payment or non-payment of any fee on the basis of disability.

9. Right to Community Life: (1) A person with disability has the right to live with his/her family or guardian or in a residence of his/her choice on an equal basis with others, and he/she shall not be forced to live in any specific place. (2) A person with disability has the right to obtain assistive devices and community support services as prescribed to live a dignified life. 10.

Right to Protection: (1) A person with disability has the right to be protected against all forms of inhuman or degrading treatment, physical or mental violence, gender-based violence, domestic violence, sexual abuse and exploitation from family, guardians or other persons. (2) A person with disability has the right to receive security, rescue and protection on a priority basis in situations of armed conflict, emergency or disaster. (3) The Government of Nepal shall make the following arrangements to protect persons with disabilities from all forms of exploitation, violence and abuse including gender-based violence: (a) To take information and keep records of incidents of exploitation, violence and abuse, gender-based and sexual violence against persons with disabilities, (b) To take effective legal action under this Act and prevailing law against exploitation,

violence and incidents referred to in Clause (a), (c) To ensure immediate and effective security, rescue, protection and rehabilitation of victims of such incidents, (d) To make appropriate arrangements to prevent such incidents, (e) To conduct awareness and counseling programs at the community level against such incidents. 11. Right to Political Participation: (1) A person with disability has the right to be a candidate in elections and to vote voluntarily, with or without assistance, in a fear-free environment on an equal basis with others. (2) The Government of Nepal shall make appropriate arrangements to make the electoral process, facilities and materials accessible and understandable and usable by persons with disabilities. 12. Right to Participate in Policy Making: (1) A person with disability has the right to participate in significant policy-making processes of a nature affecting persons with disabilities, either directly or through associations or organizations related to them. (2) While participating in a policy-making process under Sub-section (1), the views expressed by persons with disabilities shall be given due consideration based on their relevance. 13. Right to Establish Organizations: A person with disability has the right to establish, operate and manage associations or organizations according to prevailing law. 14. Right to Participate in Cultural Life: (1) A person with disability has the right to participate in cultural programs or services and entertainment including television programs, films, plays, theaters, cinema halls, libraries, tourism services, arts, literature, music, etc., in an accessible format and manner, on an equal basis with others. (2) A person with disability has the right to develop and utilize his/her creative, artistic, intellectual, professional, occupational and inherent potential. (3) A person with disability has the right to recognition and support for specific cultural and linguistic identity including sign language and deaf culture, on an equal basis with others. 15.

Right to Access to Services, Facilities and Justice: (1) A person with disability has the right to easy access to educational institutions, housing, workplaces, buildings, roads, transportation, electronic communication services, and other services and facilities that are open to or provided to the general public. (2) To ensure access to justice for persons with disabilities, they have the right to free legal aid. 16. Right to Social Security: (1) Prescribed persons with disabilities shall have the right to receive financial assistance or social security as prescribed by the Government of Nepal. (2) A person with disability, while obtaining and enjoying any opportunity, shall have the right to be reimbursed for the additional expenses incurred for the assistive services used by him/her. 17. Right to Information and Knowledge: (1) A person with disability has the right to obtain information and knowledge through public communication media on the basis of disability-friendly and accessible format. (2) Electronic broadcasting institutions of public communication shall broadcast news and other programs in sign language in the number prescribed by the Government of Nepal. (3) A person with disability has the right to receive information targeted at the general public in accessible format and technology without additional fee or charge. (4) Providers of communication services including telephone and internet shall make their services available in an accessible format usable by persons with disabilities within the timeline prescribed by the Government of Nepal. 18. Right to Freedom of Movement: A person with disability has the right to move freely with his/her assistive devices and chosen assistant, like any other person. Chapter-4 Additional Rights of Women and Children with Disabilities 19. Rights of Women with Disabilities: (1) The Government of Nepal shall make necessary arrangements as prescribed to protect the rights of women with disabilities and to create an enabling environment for the optimal utilization of their knowledge, skills and capabilities. (2) The Government of Nepal shall make necessary arrangements for the protection of the health and reproductive rights of women with disabilities, taking into consideration their special circumstances. 20.

Chapter-5

Education of Persons with Disabilities

21. Provision of Free Education: (1) Persons with disabilities shall be provided free education up to the secondary level by educational institutions operated by the Government of Nepal or the Local Level or receiving grants from the Government of Nepal.

(2) The Government of Nepal shall provide free higher education to persons with disabilities through educational institutions as prescribed.

(3) No fee of any kind shall be charged from persons with disabilities upon enrollment in educational institutions.

(4) Vocational and technical education as prescribed shall be provided free of charge to persons with disabilities.

(5) Educational institutions shall not discriminate against persons with disabilities in their extracurricular activities, distribution of educational materials and access.

(6) The Government of Nepal shall make arrangements to provide education through multiple means such as Braille or alternative script, sign language, information technology tools and peer learning, according to their needs, to facilitate education for persons with disabilities.

(7) The Government of Nepal may make arrangements to provide education as prescribed to persons with disabilities who are blind, deaf, hard of hearing, or deafblind through appropriate language modalities, script, curriculum, textbooks and accessible information technology.

(8) The Government of Nepal may make arrangements to provide education with residential facilities to persons with disabilities as prescribed, based on poverty, geographical remoteness or severity of disability.

(9) Persons with disabilities shall be enabled to access vocational and technical education, adult education, practical education and lifelong learning by providing reasonable accommodation.

(10) The Government of Nepal shall make separate provisions regarding examination and evaluation systems for students with disabilities based on the classification of disability and as per requirement.

(11) Educational institutions shall make arrangements for disability-friendly educational materials taking into account the needs of persons with disabilities.

(12) Educational institutions shall construct school buildings and other physical structures according to the standards determined by the Ministry, ensuring accessibility for persons with disabilities.

(13) Educational institutions operated by the private sector shall provide free study facilities to students with disabilities in the number prescribed by the Government of Nepal. 22. Provision of Scholarships and Financial Assistance: (1) The Government of Nepal shall provide educational scholarships as prescribed to students with disabilities for education that is not free.

(2) The Government of Nepal shall provide financial assistance as prescribed for the development of physical infrastructure and other services and facilities of schools that have special education programs for students with disabilities. 23.

Enhancing Access to Quality Education for Students with Disabilities: (1) The Government of Nepal shall make necessary arrangements as prescribed to continue and promote the studies of students with disabilities. (2) The Government of Nepal shall make arrangements for special training for teachers teaching students with disabilities and teachers with disabilities. (3) The Government of Nepal shall provide

educational materials as prescribed free of cost to schools to ensure access to school and learning for students with disabilities.

Chapter-6 Skill Development and Employment

24. Vocational Training and Self-Employment: (1) The Government of Nepal shall provide vocational training to enhance the skills of persons with disabilities, develop professionalism and create conditions for self-employment. (2) The Government of Nepal shall make arrangements to provide loans at concessional rates as prescribed to persons with disabilities wishing to engage in various professions or businesses, based on their skills, capabilities and proposals prepared by them for the profession or business. (3) No enterprise shall discriminate against a person with disability in matters of employment or related matters. (4) Notwithstanding anything contained in Sub-section (3), the Government of Nepal may grant exemptions for specific employments from the application of that Sub-section. (5) An enterprise shall make arrangements for employees or workers with disabilities to be able to work conveniently. (6) No person shall deprive any person of promotion opportunities or refuse promotion solely on the basis of disability. (7) Notwithstanding anything contained in prevailing law, the body or institution providing employment shall not terminate the employment or demote a worker or employee with disabilities in the course of employment. (8) In relation to an employee with disabilities under Sub-section (7), the following shall be done: (a) If the worker or employee becomes disabled to the extent of being unable to perform the duties of the position he/she was holding, he/she shall be assigned to another post with equal salary and benefits, (b) If it is not possible to assign such worker or employee to another post, another suitable post shall be created for him/her, or an additional post shall be maintained for him/her until his/her retirement.

25. Obligation to Appoint Persons with Disabilities: (1) The Government of Nepal may prescribe that a specific number of persons with disabilities shall be appointed in an enterprise, based on their physical capacity, training, qualification and experience, as far as suitable work is available. (2) Enterprises prescribed under Sub-section (1) shall appoint persons with disabilities based on the priority as prescribed.

26.

Record Keeping Required: (1) An enterprise shall keep an updated record of the number of persons with disabilities working in its enterprise, facilities provided to them, and other details as prescribed. (2) The record maintained under Sub-section (1) shall be kept open by the enterprise for inspection by those wishing to inspect it within the timeline at the Local Level.

27. Right to File Complaint to the Manager: (1) If any person suffers loss or damage due to an enterprise failing to comply with the provisions of Sub-sections (3), (4), (5) or (6) of Section 24, such person may file a complaint with the Manager. **Explanation:** For the purpose of this Chapter, "Manager" means the officer authorized to make final decisions on the operations of the enterprise. (2) Upon receiving a complaint under Sub-section (1), the Manager shall conduct necessary investigation into the complaint within fifteen days. If the content of the complaint is found to be reasonable upon such investigation, the Manager shall make necessary corrections or rectify the errors.

Chapter-7 Health, Rehabilitation, Social Security and Recreation

28. Provision of Free Health Services: (1) The Government of Nepal shall make arrangements to provide free health services and necessary therapy services including speech therapy and occupational therapy to persons with disabilities whose annual income is less than the income prescribed, or who are admitted to government hospitals for the treatment of prescribed diseases. **Explanation:** For the purpose of this Section, "Hospital" also includes health center. (2) The Government of Nepal shall provide free of cost, as prescribed, medicines that need to be taken due to disability, and factors required by persons with hemophilia. (3) The Government of Nepal shall make necessary arrangements to remove barriers to access to hospitals for the health treatment of persons with disabilities. (4) Health workers at hospitals shall provide the best possible quality health treatment services available at the hospital to persons with disabilities on a priority basis. (5) Hospitals operated by the public and private sectors having more than twenty-five beds shall reserve at least two beds for persons with disabilities. (6) The Government

of Nepal shall make necessary arrangements regarding the prevention of preventable disabilities, and to identify, prevent, control, eliminate and treat factors causing disability. (7) The Government of Nepal shall make necessary arrangements to provide treatment from a nearby hospital to minimize the deviation of organ and organic functions arising from disability. 29. Provision Relating to Rehabilitation: (1) The Government of Nepal shall rehabilitate persons who are fully disabled, severely disabled, without support, or with intellectual disabilities, and persons with mental or psychosocial disabilities.

Explanation: For the purpose of this Section, "Rehabilitation" means medical services, life-skills based and vocational training, assistive devices, medication, regular counseling services, educational and economic programs provided to enable a person with disability to live an active life in society, and also includes residential programs operated for the accommodation of persons with disabilities. (2) The Government of Nepal may establish Rehabilitation Centres as required for the purpose of arranging appropriate housing, empowering and rehabilitating persons with disabilities into society. (3) Any organization may establish and operate a Rehabilitation Centre for the purpose of Sub-section (1) upon obtaining approval as prescribed. (4) The Government of Nepal may provide financial and other assistance to Rehabilitation Centres as prescribed. (5) Standards for physical and other infrastructure, management and operation required in a Rehabilitation Centre, and provisions relating to monitoring shall be as prescribed. 30. Rehabilitation Fund: (1) The Government of Nepal shall establish a Rehabilitation Fund for operating the Rehabilitation Centres established pursuant to Sub-section (2) of Section 29. (2) The Fund under Sub-section (1) shall consist of the following amounts: (a) Amount received from the Government of Nepal, Inserted by the First Amendment. (a1) Amount received from the Provincial Government, (b) Amount received as assistance from any person or institution, (c) Amount received from foreign individuals, associations or institutions, (d) Amount received from the Local Level, Amended by the First Amendment. (e) Amount received from fines imposed under Section 55, (f) Amount received from any other source. (3) Provisions relating to the operation of the Rehabilitation Fund shall be as prescribed. 31. Conducting Research: The Government of Nepal shall conduct or cause to be conducted necessary research for the empowerment of persons with disabilities, enhancing their access to services and facilities, and the development of disability-friendly services, facilities and technology. 32.

Social Security: (1) The Government of Nepal shall implement social security programs as follows to enable persons with disabilities to live independently and self-reliantly in society, with contribution from persons with disabilities or free of cost in prescribed circumstances: (a) To develop community housing facilities including security and health services, (b) To arrange housing for helpless children and persons with disabilities who have been abandoned by their families, (c) To arrange life insurance, health insurance and accident insurance, (d) To provide medicines and necessary assistive devices, (e) To provide unemployment allowance, livelihood allowance and old age allowance on a prescribed basis, (f) To provide an allowance for the assistants of persons with disabilities in prescribed circumstances, (g) To assist in the development and use of universal design for the development of persons with disabilities, Explanation: For the purpose of this clause, "Universal Design" means the design of products, physical structures, programs and services usable by all to the greatest extent possible, and this term also includes assistive devices used for specific groups of persons with disabilities. (h) To make available other services and facilities as prescribed. (2) While implementing the programs under Sub-section (1), matters such as diversity of disability, gender, age, economic and social status shall be taken as a basis. 33. Cultural Rights and Recreation: The Government of Nepal and Local Level shall make the following arrangements to respect the cultural rights of persons with disabilities and to create opportunities for them to participate in recreational activities like other persons: (a) To provide necessary scholarships, facilities and support for the respect and development of skills, arts,

talents and interest in literature among persons with disabilities, (b) To develop necessary technology and arts to make services, facilities and infrastructure accessible to persons with disabilities, (c) To support recreation centers and associations/organizations providing services to persons with disabilities, (d) To encourage persons with disabilities to participate in extracurricular activities, (e) To perform or cause to be performed other activities as prescribed. 34.

Participation in Sports: (1) The Government of Nepal shall make necessary arrangements to enable persons with disabilities to participate in sports-related activities, making special arrangements as needed, like other persons. (2) Institutions or bodies responsible for sports development and organizing competitions shall involve persons with disabilities in sports competitions for the development and promotion of sports. (3) For the purposes of Sub-sections (1) and (2), institutions or bodies authorized to develop sports may conduct the following programs to ensure the participation of persons with disabilities in sports: (a) Review sports curricula and programs to ensure accessibility and inclusive participation of persons with disabilities, (b) Redesign sports grounds and physical infrastructure to ensure access and facilities for persons with disabilities, (c) Develop and use necessary technology to highlight the talent and capabilities of persons with disabilities in sports, (d) Organize sports competitions including persons with disabilities, (e) Ensure effective representation of persons with disabilities in international, national, provincial and local-level mechanisms related to sports, (f) Ensure participation of children with disabilities in school-level sports and extracurricular activities like other children, and arrange appropriate training, coaching, competitions and resources for their participation in sports developed based on the nature of disability, (g) Perform or cause to be performed other activities as prescribed. 35. Additional Services and Facilities for Persons with Mental or Psycho-Social Disabilities: (1) The Government of Nepal shall make arrangements to provide treatment to persons with mental or psychosocial disabilities by placing them in a community hospital or health center chosen by themselves, any member of their family or guardian. (2) The Government of Nepal shall provide necessary medicines and counseling services free of cost to persons with mental or psychosocial disabilities. (3) The Government of Nepal shall make arrangements to treat, rehabilitate or reunite with family persons with mental or psychosocial disabilities who have been neglected by their families. 36. Not to Be Kept in Prison: (1) Notwithstanding anything contained in prevailing law, no person with a mental or psychosocial disability shall be kept in prison in the name of treatment or protection. (2) Notwithstanding anything contained in Sub-section (1), there shall be no bar to keeping persons with disabilities who are being prosecuted for or have been sentenced for criminal offenses in prison according to prevailing law. Chapter-8 Concessions and Facilities for Persons with Disabilities 37.

Concessions and Facilities: (1) The Government of Nepal shall make arrangements to provide grants or loans at concessional interest rates to persons with disabilities for agriculture and self-employment-based businesses or entrepreneurship. (2) Owners or operators of vehicles shall provide a fifty percent discount on passenger fares to persons with disabilities as prescribed while traveling by public vehicles such as buses, trains, airplanes. (3) The Government of Nepal may provide full or partial exemption from customs duty, excise duty, local tax or other charges, as per prevailing law, on assistive devices, equipment or tools used by persons with disabilities, disability-friendly vehicles, and goods, machinery, spare parts and raw materials used for the education, training or self-employment of persons with disabilities. (4) The Government of Nepal may provide tax exemption as prescribed on the expenses incurred for making specially adapted modifications or installing spare parts to make machinery installed in enterprises established with the objective of employing persons with disabilities disability-friendly. (5) The Government of Nepal may provide tax exemption on the amount equivalent to the expenses incurred by institutional schools providing free education to persons with disabilities. (6) The Government of Nepal shall make arrangements for free

education as prescribed for the sons and daughters of persons with disabilities as prescribed. (7) The Government of Nepal may make arrangements for providing loans at concessional interest rates from banks and financial institutions to social organizations, commercial or industrial enterprises that provide training or employment only to persons with disabilities or arrange employment for them. (8) The Government of Nepal may provide loans at special concessional rates, tax exemption as per prevailing law, or provide discounts and concessions for the import of equipment required for workplace safety, supply of raw materials, or market management activities to enterprises established with the objective of providing employment or training to persons with disabilities, or enterprises employing persons with disabilities in numbers greater than prescribed. Chapter-9 Directive Committee and Coordination Committee 38.

Directive Committee: (1) There shall be a National Directive Committee on Disability for the purpose of coordinating, overseeing, promoting and providing directives on activities related to the rights, services, facilities and protection of persons with disabilities. (2) The Directive Committee shall be constituted as follows: Amended by the First Amendment. (a) Minister, Ministry of Women, Children and Senior Citizens - Chairperson Inserted by the First Amendment. (a1) Member nominated by the Directive Committee from among the members under Clause (d) - Vice-Chairperson (b) Member, National Planning Commission (looking after social services) - Member (c) Chief Secretary of the Government of Nepal - Member Amended by the First Amendment. (d) Secretary, Ministry of Women, Children and Senior Citizens - Member (e) Secretary, Ministry of Finance - Member (f) Secretary, Ministry of Law, Justice and Parliamentary Affairs - Member (g) Secretary, Ministry of Home Affairs - Member Amended by the First Amendment. (h) Secretary, Ministry of Federal Affairs and General Administration - Member (i) Secretary, Ministry of Health and Population - Member Amended by the First Amendment. (j) Secretary, Ministry of Labour, Employment and Social Security - Member Amended by the First Amendment. (k) Secretary, Ministry of Education, Science and Technology - Member (l) Secretary, Ministry of Physical Infrastructure and Transport Management - Member (m) Member-Secretary, Social Welfare Council - Member (n) President, Federation of Nepalese Chambers of Commerce and Industry - Member (o) President, National Federation of the Disabled Nepal - Member (p) National Coordinator, Community Based Rehabilitation Network - Member (q) Two persons, including one woman, from among experts on disability issues - Member Amended by the First Amendment. (r) Two persons from among persons with disabilities who have made significant contributions at the national level - Member Inserted by the First Amendment. (r1) Ten persons, including at least five women, from among national-level associations, organizations, federations of persons with disabilities and organizations working in the field of human rights, representing different disability categories on the basis of the principle of inclusion - Member (s) Two persons, including one woman, from among service-providing organizations related to disability - Member (t) Chief of the concerned Division of the Ministry - Member-Secretary Amended by the First Amendment. (3) The nomination of members under Clauses (q), (r), (r1) and (s) of Sub-section (2) shall be made by the Ministry.

39. Functions, Duties and Powers of the Directive Committee: The functions, duties and powers of the Directive Committee shall be as follows:

- (a) To recommend to the Government of Nepal for formulating long-term policy relating to disability,
- (b) To formulate and implement plans and programs relating to disability subject to the policy approved by the Government of Nepal,
- (c) To adopt or cause to be adopted appropriate measures to promote the protection and enjoyment of rights, services, facilities and opportunities of persons with disabilities and enable their full enjoyment of human rights and fundamental freedoms without discrimination,

- (d) To coordinate among various government bodies or non-governmental institutions in activities related to disability,
- (e) To suggest to the Government of Nepal if amendments are necessary in prevailing laws relating to disability,
- (f) To research or cause to be researched the latest technology of equipment or goods used for the services and facilities of persons with disabilities, to further improve and develop them, and to promote the availability and use of such equipment in this field,
- (g) To provide or cause to be provided training to concerned persons and employees about the roles of various bodies regarding the rights of persons with disabilities,
- (h) To raise or cause to be raised public awareness about conditions that may cause disability, precautions to be taken for its prevention, and the behavior and support required to respect the rights of persons with disabilities,
- (i) To provide interpreter services for persons who are deaf and deafblind, to research, develop and promote Nepali Sign Language, and to develop necessary dictionaries and tactile communication for this purpose,

Explanation: For the purpose of this clause, "Interpreter" means a sign language interpreter who facilitates communication for deaf or hard of hearing persons, a captioner for hard of hearing persons, or a tactile communication interpreter who facilitates communication for deafblind persons.

- (j) To approve policies necessary to make physical structures accessible to persons with disabilities,
- (k) To formulate and implement necessary programs by setting timelines to facilitate access for persons with disabilities in public places including hospitals, playgrounds, roads, public and government Local Levels, public transport vehicles, roads, toilets, bus parks, parks,
- (l) To assist and collaborate with institutions working for the rights, interests, promotion and protection of rights and services and facilities of persons with disabilities,
- (m) To monitor, supervise and evaluate various programs conducted for persons with disabilities,
- (n) To conduct or cause to be conducted studies, research, collection,

54.

Liability of the Government of Nepal, Provincial Government and Local Level: (1) The Government of Nepal, Provincial Government and Local Level shall have the liability to effectively implement and cause to be implemented the rights of persons with disabilities.

(2) The Government of Nepal, Provincial Government and Local Level shall have the liability to provide without hindrance the assistance to be provided to persons with disabilities on behalf of the State.

(3) The concerned Local Level shall have the liability to provide to persons with disabilities within its area such services, facilities and opportunities as may be available from the Local Level.

(4) The Government of Nepal shall adopt measures as prescribed to ensure an environment where persons with disabilities can live a dignified and respectable life equally with other persons without discrimination. 55.

Liability of Educational Institution: The concerned educational institution shall have the liability to effectively implement the provisions relating to education mentioned in this Act for persons with disabilities. 56.

Liability of Family Members and Guardians: (1) Family members or guardians shall give special attention to persons with disabilities according to the condition of disability, provide care and nurture, and make available opportunities for education.

(2) If any person with disability is at further risk due to lack of treatment, family members or guardians shall

immediately take such person for treatment to the nearest hospital or health institution designated by the Government of Nepal.

(3) A person with disability shall not be expelled from home or neglected.

(4) The Government of Nepal, Provincial Government and Local Level may provide training relating to self-care and nursing, and other necessary services and assistance to the families of persons with disabilities in a manner that helps them discharge their liability towards persons with disabilities. 48. Liability of Medical Practitioner: (1) If a medical practitioner considers that there is a risk of disability in any person who comes to him/her for treatment, he/she shall inform such person thereof and provide treatment giving due attention to that aspect as well.

(2) A medical practitioner shall give priority to a person with disability and treat him/her in a disability-friendly environment, and if he/she cannot provide treatment for any reason, he/she shall refer the person to a place where treatment is possible. 49.

Chapter-11

Protection and Enforcement of Rights of Persons with Disabilities and Responsibilities towards Them

51. Application may be made for Enforcement of Rights: (1) If anyone violates the rights of a person with disability mentioned in this Act or fails to discharge the responsibility towards a person with disability, the person with disability himself/herself, or any member of his/her family or guardian may file an application before the Chief District Officer of the concerned district for the enforcement of such right or discharge of such responsibility.

(2) Upon receipt of an application under sub-section (1), the Chief District Officer shall, within seven days, summon the concerned person or body and make necessary inquiry regarding the matter.

(3) If, upon making an inquiry under sub-section (2), it is found that any person has violated the rights of a person with disability or has not discharged the responsibility towards a person with disability, the Chief District Officer shall issue an order to the concerned person to enforce the right of the person with disability or to discharge the responsibility towards the person with disability.

(4) If, upon making an inquiry under sub-section (2), it appears that any body or institution has not caused the enforcement of rights of a person with disability or the discharge of responsibility towards a person with disability, the Chief District Officer shall send a letter to the concerned body or institution to cause the enforcement of the right or the discharge of the responsibility.

(5) Upon receipt of a letter under sub-section (4), the concerned body or institution shall make arrangements to cause the enforcement of the right of the person with disability or the discharge of the responsibility towards the person with disability.

(6) While causing the enforcement of rights of a person with disability or the discharge of responsibility towards a person with disability under this section, the Chief District Officer may give necessary advice, warning or order to the family members or guardians of the person with disability.

(7) An appeal against an order given by the Chief District Officer under sub-section (3) or (6) may be filed in the concerned High Court within thirty-five days. 52.

Application may be filed in District Court for Enforcement of Rights: (1) Notwithstanding anything contained in

section 51, a person with disability, his/her family member or guardian may directly file an application in the District Court of the district where the person with disability resides, for the enforcement of the rights of the person with disability or for the discharge of the responsibility towards him/her. (2) Upon receipt of an application under sub-section (1), the District Court may, after making necessary inquiry in that regard, issue an appropriate order in the name of the concerned person or body relating to the enforcement of the rights of the person with disability or the discharge of the responsibility towards the person with disability. (3) If, while inquiring into the application received under sub-section (1), it appears that any family member or guardian has violated the rights of the person with disability or has not discharged the responsibility towards the person with disability, the Court shall give necessary information regarding the rights of and responsibility towards the person with disability to such family member or guardian and cause him/her to express a commitment not to violate the rights of the person with disability or to discharge the responsibility towards him/her. (4) While issuing an order under sub-section (2), the District Court may warn or punish under section 55, and order reasonable compensation from, the person, institution or head of body who violates the rights of a person with disability or fails to discharge the responsibility towards a person with disability. Chapter-12 Offenses and Penalties 53. Not to Hate, Despise or Scorn: No one shall hate, despise, ridicule or scorn a person with disability, knowingly commit any act that injures his/her self-esteem, or obstruct or interfere with the use of assistive devices used by a person with disability, or snatch or damage such devices. 54. Not to Cause to Beg: No one shall cause a person with disability to beg. 55.

Penalty: (1) If anyone does any act contrary to sub-section (1) of section 5, such person shall be liable to imprisonment for a term from one month to three months or a fine from three thousand rupees to ten thousand rupees or both. (2) If anyone does any act contrary to section 53, such person shall be liable to imprisonment for a term from three months to nine months or a fine from thirty thousand rupees to ninety thousand rupees or both. (3) If anyone does any act contrary to section 54, the person who begs or causes to beg shall be liable to an additional penalty of fifty percent on top of the penalty provided by the prevailing law. (4) Any person who abets, attempts or aids as an accessory in committing the offense under sub-section (2) shall be liable to half the penalty imposed on the principal offender. (5) If a person who has been punished under sub-section (2) or (4) repeats such act, he/she shall also be liable to an additional penalty of twenty-five percent on top of the penalty under that sub-section. (6) If any person violates the rights of a person with disability conferred under this Act or fails to discharge the responsibility towards him/her, such person shall be liable to a fine of up to fifty thousand rupees. (7) Other than as set forth in the above sub-sections, any person or the head of any institution or body acting contrary to this Act shall be liable to a fine of up to fifty thousand rupees. 56. Limitation Period: A case relating to matters punishable under section 55 shall be filed within three months from the date of commission of such act. 57. Government of Nepal to be Plaintiff: The case punishable under sub-sections (1), (2), (3), (4) and (5) of section 55 shall be a case in which the Government of Nepal is the plaintiff, and such case shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074. Chapter-13 Miscellaneous 58. Amended by the first amendment. Protection Officer: The Local Level may designate an employee as a Protection Officer for, among others, the work of protecting the rights of persons with disabilities. 59. Mobile Services may be Operated: The Ministry shall operate or cause to be operated mobile services as prescribed to easily make available the services and facilities under this Act and the rules made under this Act to persons with disabilities. Deleted by the first amendment 60.

Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of this Act. 61. Power to Make Procedures and Guidelines: For the implementation of this Act, the Ministry may make and implement necessary procedures or guidelines not inconsistent with this Act and the rules made

under this Act. 62. Power to Amend Schedule: The Ministry may, by publishing a notice in the Nepal Gazette, amend the Schedule as required. 63. Repeal and Saving: (1) The Disabled Protection and Welfare Act, 2039 is hereby repealed. (2) All acts and actions performed under the Disabled Protection and Welfare Act, 2039 shall be deemed to have been performed under this Act. Schedule (Relating to sub-section (1) of section 3) Classification of Disability (a) Persons with disability based on problems and difficulties in body parts or systems: 1. Physical Disability: A person having problems in movement, use of limbs and mobility due to problems in the structure and functioning of nerves, muscles, joints and bones (e.g.: polio, limb deficiency, leprosy affected, muscular dystrophy, permanent problems related to joints and spine, clubfoot, rickets, disability resulting from bone problems), and a person who has attained the age of sixteen years and has a height extremely less than the average height expected for that age. 2. Visual Disability: A person who, due to the following visual problems, has no perception of the shape, size, form and color of any object: (a) Blindness: A person who, even with the use of medication, surgery, spectacles or lenses, cannot count fingers from a distance of ten feet with both eyes, or cannot read the first line of letters of the Snellen chart (3/60). (b) Low Vision: A person who, even with the use of medication, surgery, spectacles or lenses, cannot count fingers from a distance of twenty feet, or cannot read the fourth line of letters of the Snellen chart (6/18). (c) Total Blindness: A person who cannot distinguish between light and dark at all. 3. Hearing Disability: A person who cannot identify sound due to the structure of the hearing organs and inability to distinguish its recognition, location, pitch, volume and quality: (a) Deaf: A person who cannot hear sound above eighty decibels or who must use sign language for communication. (b) Hard of Hearing: A person who needs to use a hearing aid to hear, or who can hear sound from sixty-five to eighty decibels. 4.

Deafblind Disability: A person having both hearing and visual disabilities, or having a combined interaction of two sensory disabilities. 5. Speech and Language Disability: A person having difficulties in pitch variation while speaking due to functional limitations in the organs of voice and speech, unclear speech, or repetition of words or syllables. 6. Mental or Psychosocial Disability: A person in a condition where, due to problems in the brain and mental organs and problems in performing intellectual functions such as consciousness, orientation, attention, memory, language, calculation, etc., there is difficulty in behaving according to age and circumstances. 7. Intellectual Disability: A person in a condition where intellectual consciousness does not develop with age, resulting in difficulty in performing activities relative to age or environment due to lack of intellectual development (e.g.: Down syndrome, etc.) 8. Hemophilia Related Disability: A person in a physical condition where, due to hereditary effects, there is a deviation in clotting factors in the blood, causing problems in blood clotting. 9. Autism Related Disability: A person having congenital problems in the development of nerves or tissues and their function (e.g.: difficulty in communicating, understanding and using normal social rules; not showing normal behavior with age development; showing abnormal reactions; repeating the same action continuously; not mixing with others or showing intense reactions). 10. Multiple Disability: A person having two or more types of disabilities mentioned above in the same individual (e.g.: cerebral palsy, etc.) (b) Classification of Disability based on severity of disability: (1) Profound Disability: A person in a condition where there is difficulty in performing daily activities even with continuous assistance from others. (2) Severe Disability: A person in a condition who requires continuous assistance from others to perform personal activities and to participate in social activities. (3) Moderate Disability: A person in a condition who, with physical facilities, removal of environmental barriers, education or training, can regularly participate in daily routine and social activities, with or without the help of others. (4) Mild Disability: A person in a condition who can regularly participate in daily routine and social activities in the absence of social and environmental barriers. Explanations: 1. "Structure and function of body parts" means the organs and functions related to body movement, vision, voice and hearing, mental, muscular and nervous, and other

system parts and functions. 2. "Routine daily activities and participation in social life domains" means a person's learning, daily tasks, communication, mobility, self-care, domestic life interaction, inclusive education, employment, community and civic life domain activities and participation. 3. "Barriers created by existing social and physical environment" means barriers created by psychosocial, technological, natural and man-made environment, attitudes, service systems and policies. 4.